



# FEDERAL BUREAU OF INVESTIGATION

## FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION

### LIMITED SOURCES JUSTIFICATION (FAR PART 8)



#### LIMITED-SOURCES JUSTIFICATION FOR FEDERAL SUPPLY SCHEDULE PROGRAM

##### FAR 8.405-6(c)

Requisition Number: SHOP-PR-25-001178

**Title:** Satellite Airtime for CJIS Division

The following limited sources justification (LSJ) for the use of sources limited to fewer than those required in FAR 8.405-1 is prepared in accordance with Federal Acquisition Regulation (FAR) 8.405-6(c). This acquisition is conducted under the authority of the Multiple-Award Schedule Program (41 U.S.C. 251, *et seq.*, and/or 40 U.S.C. 501), 41 U.S.C. 152(3), Competitive Procedures.

#### 1. Identification of the agency and the contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation (FBI), Information Technology Acquisition Unit (ITAU), has prepared this justification for other than full and open competition for the Network Innovations US Government (NIC4) 10 SIMS satellite air card service plans covering a 12-month period on behalf of the Technology Integration and Support Unit (TISU), Criminal Justice Information Services Division (CJISD).

#### 2. Nature and/or description of the action being approved.

It is the intent of the ITAU, Finance Division, to acquire a firm fixed price contract with NIC4. The period of performance will be for one (1) year with a Period of Performance (POP) beginning the date of award. It is anticipated the award will be made to NIC4 General Services Administration Federal Supply Schedule GS-35F-0567X. These services are proprietary to NIC4. ITAU intends to limit the number of sources solicited pursuant to FAR 8.405-6(a) for the anticipated firm-fixed price Task Order for air card services to the Proposed Contractor: Network Innovations US Government 111 Kelsey Lane, Suite D, Tampa, Florida 33619.

#### 3. A complete description of the supplies and/or services required to meet the agency's needs. Provide the estimated total value to complete the work (including any options, if any).

CJIS/TISU has a need to renew five lines of air card service over a 12-month period for satellite phones/satellites which will continue to be used within the CJIS Division on Mission Critical assignments. These lines of service are used to support domestic and international objectives where cellular service is nonexistent or weak such as Southwest Border and Foreign Countries. Lines of service are also maintained in the event of a COOP initiative where satellite communication may be necessary. This will allow the TISU to accomplish its requirement of providing lines of service to support domestic and international objectives. Lines of service are also maintained in the event of a COOP initiative where satellite communication may be necessary.



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**4. The authority and supporting rationale (see 8.405-6(a)(1)(i) and (b)(1)) and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.**

- FAR 8.405-6(b) – An item peculiar to one manufacturer is required.

NIC4 Network Innovations satellite airtime service is proprietary to NIC4 and they are uniquely qualified to provide these lines of service to TISU/CJIS based upon the following:

TISU's hardware supports NIC4 requirements such as network compatibility, SIM card size, etc. Continuing to have NIC4 as the provider eliminates the possibility of having to repurchase all new hardware to support a new vendor. Some of the hardware and supporting lines of service are currently deployed to another country in support of a CJIS initiative. Proceeding with another vendor could cause work interruptions and the inability to communicate FBI Mission Critical communications. CJIS purchased satellite hardware based on SIM card size and network compatibility. If NIC4 10 SIMS satellite air card service plans are not utilized, this would not be cost effective nor time effective and would hinder upcoming procurements and inventory related items for the FBI; additionally, it would cause an undue burden on the TISU, CJISD, and organization requiring the retrieval and replacement of all existing hardware. Some of the hardware and supporting lines of service are currently in another country supporting a CJIS initiative. Additionally, compatibility in existing hardware would require testing and security approvals incurring additional costs. Proceeding with another vendor could cause work interruptions and the inability to communicate FBI Mission Critical communications.

**5. A determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).**

The contracting officer has determined that issuing the proposed Task Order to NIC4 for the Satellite Airtime Services will meet the Government's needs. This order will be placed in accordance with FAR 8.404, "Use of Federal Supply Schedules." The General Services Administration (GSA) has already negotiated fair and reasonable pricing rates. Discounts to these GSA schedule rates will be requested. Additionally, prior to issuance of the task order, the ordering activity will consider the level of effort and the mix of labor proposed to perform the specific task being ordered to determine that the total price is reasonable. The contractor's labor mix and level of effort will also be compared to the Independent Government Cost Estimate (IGCE).

**6. A description of the market research conducted among schedule holders, and the results of the research. A statement must be made that the supplies and services are available from the**



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FSS.

Market Research was completed by examining pertinent specifications and capabilities and recommendations from other technical members of the government community. TISU currently utilizes hardware that supports NIC4 requirements such as network compatibility, SIM card size, etc. Other vendors supply lines of service for satellites, however, each have their own requirements as to what type of hardware they support as well as their own networks. Continuing to have NIC4 as the provider eliminates the possibility of having to repurchase all new hardware to support a new vendor. Some of the hardware and supporting lines of service are currently deployed to another country in support of a CJIS initiative. Proceeding with another vendor could cause work interruptions and the inability to communicate FBI Mission Critical communications.

**7. Any other facts supporting the limited source justification.**

See information above.

**8. A statement of the actions, if any, the agency will take to remove or overcome any barriers that led to restricted consideration before any subsequent acquisition for supplies and services is made.**

The actions of the TISU, CJISD to identify potential sources possessing the ability to satisfy this and similar requirements are ongoing. The Government will continue to research the market to obtain as many available sources as required, in accordance with the FAR, to ensure that there are other vendors out there that can satisfy future requirements. In addition, before the supporting products become end-of-life, a review of the other satellite airtime service providers and products that support them will be researched to identify the best value for the Government.



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